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Case Names: In the matter of the Ada Weeks Trust and the matter of the Benito Martinez Trust
Case Nos.: 25PR200567 and 25PR200568

INTRODUCTION

Shelby Weeks ("Petitioner") filed two nearly identical petitions in the cases of the Ada Weeks Trust, 25PR200567 ("Weeks Petition"), and the Benito Martinez Trust, 25PR200568 ("Martinez Petition").[1] Petitioner asserts that the trustee of both trusts, William Weeks ("Respondent") committed elder abuse. In both cases, the seeks an accounting, removal of Respondent as trustee, surcharge of Respondent, double damages under Welfare and Institutions Code Section 15657.5, Probate Code section 859 damages, and disinheritance of Respondence pursuant to Probate Code section 259.

In both cases, Respondent filed an objection to the petition on November 25, 2025. Respondent asserts in each case that Petitioner lacks standing to seek relief. On January 20, 2026, Petitioner filed replies in both cases addressing the issue of standing. The court set the standing issue on the law and motion calendar for decision. It allowed the parties to file supplemental briefs by May 26, 2026. Petitioner filed her supplemental brief in docket 25PR200567 only on May 28, 2026.[2] Respondent filed no supplemental brief.

DISCUSSION

Petitioner contends that she has standing to pursue her claims because she is a successor trustee after Respondent under the terms of both trusts.

The standing provisions of the Elder Abuse Act provide that the personal representative has standing to pursue an elder abuse claim on behalf of the decedent after the decedent's death and if there is no personal representative, a successor in interest or an interested person under Probate Code section 48 may pursue such a claim. (Welf. & Inst. Code, § 15657.3, subd. (d).) Where the elder is alive but incapacitated, "the elder's personal representative may demand return of property on the elder's behalf and, if unsuccessful, may bring an action for damages and other relief. ([Welf. & Inst. Code,] § 15657.6.) [Personal] representative is defined as a person or entity that is either (1) [a] conservator, trustee, or other representative of the estate of an elder or dependent adult or (2) [a]n attorney-in-fact of an elder or dependent adult who acts within the authority of the power of attorney." ([Welf. & Inst. Code,] § 15610.30, subd. (d); see [Welf. & Inst. Code,] § 15657.6 [adopting definition of personal representative contained in § 15610.30, subd. (d)].)" (*Tepper v. Wilkins* (2017) 10 Cal.App.5th 1198, 1204-1205 (*Tepper*),

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[1] Petitioner filed her petition in the Ada Weeks case on July 28, 2025 and in the Benito Martinez case on July 29, 2025. It appears Petitioner misspelled Benito and that it should be the Bennito Martinez trust. This court will use Benito.

[2] The court has discretion under Rules of Court, rule 3.1300(d) to refuse to consider late-filed papers. (See *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) Here, the court will exercise its discretion to consider the supplemental brief but Petitioner is admonished that failure to comply with deadlines may result in the court refusing to consider her filings.

internal quotation marks omitted.) Here, Respondent does not assert that there is a personal representative for the estate of Benito Martinez or that Ada Weeks has any current representative under Welfare and Institutions Code section 15610.30.

In *Estate of Lowrie* (2004) 118 Cal.App.4th 220, 229-230 (*Lowrie*), the Court of Appeal held that a successor trustee and successor beneficiary had standing to pursue a claim of financial elder abuse against the currently-acting trustee. The court explained, “According to decedent’s estate plan, if [trustee] Sheldon predeceased decedent, Lynelle would become the successor trustee and the successor beneficiary to the remainder. Thus, Lynelle would become the person entitled to succeed to decedent’s estate and Lynelle would have standing to bring this case. [Citation.]” The court emphasized that “[s]tanding, for purposes of the Elder Abuse Act, must be analyzed in a manner that induces interested persons to report elder abuse and to file lawsuits against elder abuse and neglect. In this way, the victimized will be protected. Here, Lynelle’s expectancy, i.e., her contingent interest, provides her with a strong incentive to pursue this action and gives her standing.” (*Id.* at p. 230.)

Section 1.5 of the Ada Weeks Trust provides, “Trustee and Successors. ADA WEEKS is the initial Trustee of this Trust. Upon the death of ADA WEEKS, or if before that time ADA WEEKS resigns as Trustee, is removed pursuant to judicial procedure, becomes incapable, or for any reason fails or ceases to act as Trustee, the following persons shall serve as Trustee, one at a time, in the order listed: WILLIAM H. WEEKS, SHELBY WEEKS, or MICHAEL A. WEEKS.”[3] Here, Ada Weeks is not deceased and Respondent initially contended in his Objection in docket 25PR200567 that he was not the trustee of the Ada Weeks Trust because Ada Weeks was still serving.[4] But, on May 13, 2026, Respondent’s former counsel filed a declaration attaching Ada Weeks’s resignation as trustee.

Section 1.5 of the Benito Martinez Trust similarly states, “BENNITO P. MARTINEZ and ADA WEEKS are the initial Co-Trustees of this Trust. Upon the death of ADA WEEKS, or if before that time ADA WEEKS resigns as Trustee, is removed pursuant to judicial procedure, becomes incapable, or for any reason fails or ceases to act as Trustee, the following persons shall serve as Trustee in her place one at a time, in the order listed: WILLIAM H. WEEKS, SHELBY WEEKS, or MICHAEL A. WEEKS.” Benito Martinez is deceased and, on May 13, 2026, Respondent’s former counsel filed a declaration attaching Ada Weeks’s declination to serve as trustee.

Thus, under the terms of both trusts, Respondent is the current trustee and Petitioner is the next successor trustee. Further, Petitioner is a contingent beneficiary of the Ada Weeks Trust.

Section 1.6 of the Ada Weeks Trust provides, “ADA WEEKS is the beneficiary of this Trust during her lifetime.” Upon Ada Weeks’s death, section 7.3 of her trust provides

> Prior to the distribution of the Trust Estate to the beneficiaries named under Article 7.4, the Trustee shall distribute gifts of personal property as directed in the personal property assignment pages and below. Any taxes or costs of

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[3] Petitioner maintains that Michael A. Weeks is deceased.

[4] Petitioner asserted in her petition in docket 25PR200567 that Ada Weeks was incapacitated.

> transfer incurred as a result of the gift shall be bore by the recipient of the gift, unless otherwise provided for in this instrument. At the time gifts are to be made, gifts for persons who are then deceased, or institutions that no longer exist, shall lapse.
>
> To: SHELBY WEEKS and MICHAEL A. WEEKS
>
> Gift: My real property located at 1553 Vinewood Way, Tracy, CA 95376 to be distributed equally to them, outright, free of trust.
>
> To: SHELBY WEEKS
>
> Gift: All of my jewelry and clothing.

Section 7.4.1 provides, "WILLIAM H. WEEKS shall receive all of the Net Trust Estate. If WILLIAM H. WEEKS is not living at the time distribution is to be made, or dies before full distribution of his share, the undistributed balance of his share shall be distributed equally to SHELBY WEEKS and MICHAEL A. WEEKS."

Section 7.5.1 of the Benito Martinez Trust provides, "ADA WEEKS shall receive all Net of the Trust Estate. If ADA WEEKS is not living at the time distribution is to be made, or dies before full distribution of her share, the undistributed balance of her share shall be distributed to THE ADA WEEKS TRUST." Here, because Ada Weeks is living, she is entitled to the balance of the trust estate. But, Petitioner attaches to her replies to Respondent's objections in both cases an assignment of personal property purportedly signed by Ada Weeks in 2023 that assigns all of her personal property to the trustee of the Ada Weeks Trust. (See Reply to Opposition to Removal, Ex. A.) Thus, based on the information the court currently has before it, it appears that any funds Ada Weeks received from the Benito Martinez Trust would become property of the Ada Weeks Trust, of which Petitioner is the successor beneficiary. Again, Petitioner pleads that Ada Weeks is incapacitated and, thus, taking that allegation as true, she is unable to pursue claims related to elder abuse of Benito Martinez. (See Martinez Petition, ¶¶ 5, 17.)[5] Because Respondent, Ada Weeks's successor trustee, is the one alleged to have committed the elder abuse, he cannot be expected to raise such a claim against himself. Finally, as discussed above, Petitioner is the successor trustee of the Benito Martinez Trust if Respondent is removed.

Thus, as in *Lowrie*, Petitioner has a strong incentive to pursue elder abuse claims against Respondent as she will succeed to both the trusteeships now and both trust estates upon Ada Weeks's death if Respondent is disinherited and removed as trustee pursuant to her petition. But, this case differs from *Lowrie* in that there is a current living beneficiary, Ada Weeks, who is entitled to both trust estates and who is not alleged to have committed elder abuse.

In *Tepper, supra,* 10 Cal.App.5th 1198, the Court of Appeal held that a daughter lacked standing to pursue an elder abuse claim on behalf of her mother against her siblings, who were at the time or had been trustees of the mother's trust where the daughter conceded that she had

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[5] The court notes that paragraph 17 of the Martinez Petition indicates that Ada Weeks is the settlor of the trust. That same petition also asserts that Ada Weeks has a claim for elder abuse. (Martinez Petition, ¶ 21.) The court assumes for the purposes of this motion that these are typos.

not be been personally aggrieved by the siblings' actions. (*Id.* at p. 1205.) There, unlike in the instant case, the daughter did not allege that she was a beneficiary under the terms of the mother's trust. (*Id.* at p. 1206.) Because the daughter did not have a financial interest in the trust, she was not an interested person under Probate Code section 48. (*Ibid*.) The *Tepper* court concluded that the daughter must seek appointment as her mother's conservator or guardian ad litem to bring claims on her behalf. (*Id.* at p. 1208.) *Tepper* is distinguishable because, here, Petitioner has at least a contingent beneficiary's interest in the trust estates. Additionally, here, Petitioner argues in her supplemental standing brief that the property located at 1553 Vinewood Way, Tracy, CA 95376 was sold for below market value. Because that property was to be a specific bequest to Petitioner under the terms of the Ada Weeks Trust, her interest has been affected.[6] Further, in *Tepper*, the mother did not want the daughter to pursue the elder abuse claims. (*Ibid*.) Here, the court has no information that Ada Weeks does not wish Petitioner to pursue her claims.

Moreover, in *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1016, the Court of Appeal concluded that a beneficiary of a revocable trust had standing to petition to challenge the actions of the current trustee where his petition alleged that the settlor was incompetent and thus, the trust could not be revoked by the settlor. The court explained that "a trustee of a revocable trust owes no duties to a trust beneficiary, and a beneficiary does not have standing to petition the probate court regarding trust administration or the actions of the trustee, unless and until (1) the trust becomes irrevocable under the terms of the trust instrument, (2) the settlor dies, or (3) all persons holding the power to revoke the trust become incompetent. [Citation.]" (*Id.* at p. 1015.) Moreover, the Court stated that the allegation of incompetency was sufficient to confer standing, subject to the ability of petitioner to meet the ultimate burden of proving incompetency. (*Id*. at p. 1016.) Here, Petitioner has alleged Ada Weeks' incompetency in the petitions in both cases.

Respondent appears to also specifically challenge Petitioner's standing to request an accounting. (See Weeks Objection, ¶ 12; Martinez Objection, ¶ 14.) But, he does not elaborate on why Petitioner lacks such standing. Although the petitions do invoke Probate Code section 16062, they do not explain the scope of the accounting sought. Notably, while Ada Weeks is the current beneficiary of both trusts, should Petitioner succeed on her claims, she would be the named trustee of both trusts and would have the powers associated with such position. (See Prob. Code, § 16220, et seq.)

Additionally, Probate Code section 15800, subdivision (b)(2) provides, "Except to the extent that the trust instrument otherwise provides or where the joint action of the settlor and all beneficiaries is required, if, during the time that a trust is revocable, no person holding the power to revoke the trust, in whole or in part, is competent, the following shall apply: . . . The duties of the trustee to account at least annually or provide information requested under Section 16061 shall be owed to each beneficiary to whom the trustee would be required or authorized to distribute income or principal if the settlor had died during the account period or the period relating to the administration of the trust relevant to the report, as applicable." Here, as discussed above, Petitioner alleged incompetency in the petitions and is the beneficiary of specific gifts under the Ada Weeks Trust. Should she succeed in disinheriting Respondent, she would be the sole beneficiary. Probate Code section 16061 allows for an account of

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[6] Ada Weeks's resignation as trustee specifically indicated that Respondent intended to sell the Tracy property.

information relevant to the beneficiary's interest in the trust estate. Under these circumstances, the court cannot find that Petitioner lacks standing to pursue an accounting as a matter of law.

CONCLUSION

The court finds that Petitioner has standing to raise her claims.